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Berkeley Extends Surveillance Contract With Flock Safety but Rejects Major Expansion

By [Katie DeBenedetti](#) May 8, 2026

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A protester holds a sign during a rally opposing Berkeley's proposed contract expansion with surveillance company Flock Safety outside the Berkeley Unified School District.

Berkeley is extending its contract with the surveillance company Flock Safety but halting a proposed major expansion that would have added drones and more cameras to the city's system.

The City Council's vote Thursday night comes after a leaked memo from the city attorney's office pointing to high-profile instances in other cities where data from Flock's automated license plate readers was **shared with outside agencies**. The memo warned council members that Flock might not be able to comply with contractual obligations not to share their data with other customers, including federal immigration enforcement and out-of-state agencies.

"Flock's track record raises serious concerns about data sharing, accountability and oversight," Mayor Adena Ishii said ahead of the meeting. "One, I do not trust Flock as a company, and two, I don't trust our current federal government."

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The council voted 5 to 4 to approve an extension of up to 12 months of its existing contract with Flock, which was initially approved in 2023 and provides 52 automatic license plate readers. The cameras are used to track down suspects and stolen vehicles, streamline police department coordination and aid investigations.

Council members, however, overwhelmingly rejected the Berkeley Police Department's request to grow its Flock fleet, introducing new drone technology, investigative software and additional fixed surveillance cameras that would have cost an additional \$1.4 million over the next four years. Instead, the council directed the city to engage in a competitive bidding process with other vendors who could offer that surveillance software.

Ishii, along with Councilmembers Igor Tregub, Cecilia Lunaparra and Ben Bartlett, voted against the extension of the city's current contract. The expanded package was rejected on an 8–1 vote, with only Bartlett opposed. He said his district's residents opposed any contract that could be awarded to Flock.



Protesters gather outside the Berkeley Unified School District boardroom ahead of a Berkeley City Council meeting on a proposed expansion of the city's contract with surveillance company Flock Safety in Berkeley on May 7, 2026. *(Gustavo Hernandez/KQED)*

Berkeley is one of many Bay Area cities that have contracted with Flock to operate automatic license plate reading cameras in recent years, as police officials and the company have hailed the technology as an effective tool to find suspects and stolen vehicles, and even curb dangerous collisions by reducing the need for pursuits.

However, municipalities have started to rethink or **terminate** their contracts with Flock after reports that some customers' data had been accessed by out-of-state agencies, including U.S. Immigration and Customs Enforcement, without their knowledge and in violation of California law. Separately, **San José is facing lawsuits in state and district courts** from civil liberties organizations alleging that the technology creates an unconstitutional "mass surveillance system."

Under a 2015 state law, California public agencies are barred from sharing license plate reader data with federal and out-of-state agencies, and they are subject to strict privacy policies on such information.

Flock advertises data sharing as part of its offerings, providing options for its customers to share their camera data with other contracted agencies on either a national, state or one-to-one sharing level.



➡ **San José Residents Sue City, Saying Flock Safety Cameras Allow 'Mass Surveillance'**

While many Bay Area agencies have said that they do not participate in the “National Lookup,” and instead share their data on a one-to-one basis with neighboring departments, some have alleged that the wider sharing setting was reactivated by Flock without their knowledge, allowing out-of-state agencies to access their information.

Flock spokesperson Trevor Chandler told the council at Thursday’s meeting that the company has made it possible for cities to opt out of data sharing and “could have communicated the compliance features better.”

“We take full responsibility for that,” he said.

Public officials and activists say the data collected by Flock’s systems could be used against immigrants and women seeking reproductive care, as the Trump administration moves to expand deportations and limit abortion access.

“Our data not only could be, but has been accessed time and time again and used by federal agencies in ways that have undermined other commitments elsewhere, and could and would undermine Berkeley Sanctuary City commitments here,” Tregub said. “There is a real anxiety among our immigrant residents. And safety that does not include our immigrant community is not true public safety.”

In 2025, Flock began a pilot program with the U.S. Border Patrol that allowed the agency to search its “National Lookup” database without alerting affected jurisdictions, according to the memo from Berkeley’s city attorney. Berkeley — and the state of California — have sanctuary policy protections that prevent local law enforcement from aiding in federal immigration enforcement operations.

Protesters gather outside the Berkeley Unified School District boardroom before a Berkeley City Council meeting on Berkeley's proposed contract expansion with surveillance company Flock Safety in Berkeley on May 7, 2026. (Gustavo Hernandez/KOED)

Allowing Border Patrol to access California agencies' data, the city attorney said, "raises concerns among civil liberty groups that Flock is either intentionally violating or recklessly disregarding local sanctuary policies."

Data from departments that aren't opted in to the National Lookup could also be at risk if it is shared with other local jurisdictions that then share the information nationally themselves.

An *investigation by CalMatters* last summer revealed that multiple law enforcement departments in Southern California had carried out searches of data from other agencies in the state on behalf of ICE and Customs and Border Protection.

Organizers speak during a rally opposing Berkeley's proposed contract expansion with surveillance company Flock Safety outside the Berkeley Unified School District boardroom in Berkeley on May 7, 2026. *(Gustavo Hernandez/KOED)*

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In the fall, California Attorney General Rob Bonta also sued the city of El Cajon, alleging it had shared data with more than 100 agencies, including in Texas, Florida and Georgia — all states with stricter limitations on abortion access. The **city's data** was used in immigration-related searches more than 500 times last year, according to KPBS.

Federal agencies have accessed data from Flock cameras in Oakland, and the city of Richmond earlier this year deactivated its own camera network after discovering that federal officials could search its database.

“When the city can map who attends a place of worship or who seeks immigration help, people fear the worst,” said Musa Tariq, the policy coordinator for the Bay Area’s chapter of the Council on American-Islamic Relations. “They fear that by simply showing up to pray, by seeking legal help, or by standing up for justice, that they or their kids will be violently kidnapped or worse.”

KQED’s *Katherine Monahan* contributed to this report.

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